

TENTATIVE RULINGS for LAW and MOTION

August 18, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Thirteen	(530) 406-6777
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: Jane Doe #1 v. DeLuca et al.
Case No. CV2026-0950

Hearing Date: August 18, 2026 **Department Fourteen** **9:00 a.m.**

Defendants Rocko DeLuca (“DeLuca”) and Heather Hunter (“Hunter”) (collectively, “defendants”) request for judicial notice is **DENIED**. (Evid. Code, §§ 452, subds. (d), 453.) The documents are not relevant to the Court’s determination of this motion. (*People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

Plaintiff Jane Doe #1’s request for judicial notice ISO opposition is **DENIED**. (Evid. Code, §§ 452, subds. (c), (h), 453.) The Court finds that these requests do not fall within either Evidence Code section 452(c) or (h).

The Court rules on defendants’ demurrers to plaintiff’s complaint as follows:

- Defendants’ demurrer as to all causes of action based on the sham pleading doctrine is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that the sham pleading doctrine does not apply to bar plaintiff’s claims in this matter. (*Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 447; *Larson v. UHS of Rancho Springs, Inc.* (2014) 230 Cal.App.4th 336, 343-344.)
- Defendants’ demurrer to first, second, third, sixth, and seventh causes of action for intentional misrepresentation (fraud), fraudulent concealment, negligent misrepresentation, intentional infliction of emotional distress, and violation of California Unfair Competition Law is **SUSTAINED WITH LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e); *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967.) The Court finds that these causes of action are barred by Government Code section 820.2. (Govt. Code, § 820.2; *Caldwell v. Montoya* (1995) 10 Cal.4th 972, 979-982; (*Greenwood v. City of Los Angeles* (2023) 89 Cal.App.5th 851, 860; Complaint, ¶¶ 1, 4, 17-19, 21-22, 73-79, 81.) Specifically, The Court finds that on its face, plaintiff’s complaint challenges discretionary planning and policy-making decisions, not simply “ministerial” actions implementing a “policy already formulated.” (*Greenwood, supra*, 89 Cal.App.5th at p. 860.)
- Defendants’ demurrer to the fourth and fifth causes of action for breach of contract and breach of implied covenant of good faith and fair dealing is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that plaintiff fails to allege facts sufficient to support the requisite elements for a cause of action based upon breach of contract or breach of implied covenant of good faith and fair dealing. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821; *Lortz v. Connell* (1969) 273 Cal.App.2d 286, 290; See also *Regan Roofing Co. v. Superior Court* (1994) 24 Cal.App.4th 425, 434 – 435; *Digerati Holdings, LLC v. Young Money Ent., LLC* (2011) 194 Cal.App.4th 873, 885; *Carma Developers (Cal.), Inc. v. Marathon*

Development California, Inc. (1992) 2 Cal.4th 342, 371; Complaint ¶¶ 156-164, 168-170.) The Court further finds that plaintiff has not shown how the defects of these causes of action can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Cooper v. Leslie Salt Co.* (1969) 70 Cal.2d 627, 636 [“[t]he burden of proving such reasonable possibility is squarely on the plaintiff”]; *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081 [“plaintiff has the burden of proving that an amendment would cure the defect”].)

Plaintiff may amend her complaint by no later than **August 28, 2026** (10 days after the hearing). (Cal. Rules of Court, rule 3.1320(g).)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Garcia v. Penske Truck Leasing Co., L.P.**
 Case No. CV2024-1405

Hearing Date: **August 18, 2026** **Department Thirteen** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR** for a hearing on plaintiff Jamie Garcia's motion for final approval of class action and PAGA settlement. (Cal. Rules of Court, rule 3.769(f), (h).)
Plaintiffs should be prepared to argue the merits of the lodestar multiplier of 2.83.

TENTATIVE RULING

Case: **Richmond-Luwisch v. Richmond**
Case No. CV2015-1411

Hearing Date: **August 18, 2026** **Department Thirteen** **9:00 a.m.**

Plaintiff Scott Richmond-Luwisch's unopposed motion to vacate or modify renewal of judgment is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 683.170.) Plaintiff failed to file with the Court a proof of service of this motion on defendant Pamela Richmond, as required. (683.170, subd. (b); Cal. Rules of Court, rule 3.1300(c) ["[p]roof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing."].)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Scott v. Performance Food Group, Inc.**
 Case No. CV2024-0729

Hearing Date: **August 18, 2026** **Department Thirteen** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR** for a hearing on plaintiffs Steven Scott and Victor August's motion for final approval of class action and PAGA settlement, attorneys' fees award, cost award, and class representative enhancement payments. (Cal. Rules of Court, rule 3.769(f), (h).) Plaintiffs should be prepared to argue why no lodestar cross-check information was submitted and no hourly rates nor specific attorneys were identified in the Lawyers for Justice filings in support of the motion.

TENTATIVE RULING

Case: **Wells Fargo Bank, N.A. v. Kincheloe**
 Case No. CV2025-0296

Hearing Date: **August 18, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff Wells Fargo Bank, N.A.'s unopposed motion to set aside and vacate default judgment is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 187, 473, subd. (d).) Plaintiff has not filed proof of service showing that it timely served defendant June Kincheloe with the moving and supporting papers, as required. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1300(c); see generally plaintiff's proof of service.) While plaintiff served an attorney, the Court's file does not indicate that the named attorney represents defendant.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.